

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: August 26, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:00 a.m. CALENDAR

LINE

1

**PHILLIPS v. CITY OF RIO VISTA
CU24-03936**

Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

Counsel and petitioner to appear. Remote appearances are approved.

9:30 a.m. CALENDAR

LINE

2

**IN THE MATTER OF THE CRU TINNARELLO SPECIAL NEEDS TRUST
FPR047841**

Petition to Approve Sixth and Final Account and Report of Trustee from 06/01/2025, through 12/10/2025; to Confirm Trustee's Fees; Approval of Attorneys' Fees; Authorization for Payment of DHCS Claim; Authorization to Execute Remaining Guarantee Payment Trust Beneficiary Designation Form; Authorization for Final Distribution; Termination of Trust; and Discharge of Trustee [GC 70657.5(a)(1), 70652(d); PC 1060, 2620, and 17200(b)(5)]

PREGRANT ORDER

This matter was continued from August 6, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to October 22, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petitioner requests to pay the trustee the amount of \$2,750.00 per month from October 31, 2025 through the payment of the Department of Health Care Services lien. The petitioner shall explain how they calculated the amount of the monthly fee considering that the monthly fees in this accounting never exceeded \$1,293.27.
 2. The petitioner requests to pay the attorneys an amount not to exceed \$5,000.00 without a further court order. The petitioner shall explain how they determined this amount.
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LINE

3

**IN RE THE ESTATE OF JOALLEN DULAY CASTADA, DECEASED
PR24-00522**

First and Final Report of Petitioner and Waiver of Accounting and Petition for Its Settlement and For Allowance of Statutory Compensation to Attorney for Ordinary Services

PREGRANT ORDER

This matter was continued from May 14, 2026 and June 17, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition filed June 15, 2026, and the Proofs of Service filed June 18 and June 22, 2026 which did not resolve all issues.

The court on its own motion continues this hearing to September 30, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

Amended Petition, page 6, lines 14-19: The amended petition is contradictory as it requests that the remaining balance of \$5,833.00 be paid to the administrator for expenses, but also to the Franchise Tax Board as a priority creditor. The petitioner shall clarify whether the remaining funds should be paid to the administrator or to the FTB.

LINE

4

**IN RE THE ESTATE OF DENNIS B. WHITEHEAD, DECEASED
PR25-00153**

First Report of Status of Administration

PREGRANT ORDER

The status report filed May 13, 2026, is approved. The court orders that the estate's administration shall continue through May 13, 2027. Unless a petition for final distribution is on file by May 13, 2027, a second status report shall be filed by May 13, 2027.

LINE

5

**IN RE THE ESTATE OF HEATHER LYNN PHILLIPS, DECEASED
PR25-00492**

First Amended First and Final Account and Report of Administrator and Petition for its Settlement, and Petition for Approval of:

1. Final Distribution;
2. Allowance of Compensation to Administrator Ordinary Services;
3. Allowance of Compensation to Attorneys for Ordinary Services;
4. Allowance of Reimbursement of Costs to Administrator and Anticipated Costs to Attorneys;
5. Reserve for Closing Expenses;
6. Discharge of Creditors; and
7. Exoneration and Release of Bond

PREGRANT ORDER

This matter was continued from April 20, 2026, and June 17, 2026, to allow the petitioner to address and issue with the petition. The court has reviewed the Proof of Service filed June 17, 2026, which resolved the outstanding issue.

The court finds all notices have been given as required by law. The first amended petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

All future compliance hearings are vacated.

LINE

6

IN RE THE ESTATE OF MANUEL ALFREDO CORDOVA, DECEASED PR25-00634

Petition for Probate of Will and for Letters of Administration with Will Annexed; Petition for Letters of Administration; and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from November 5, 2025, December 17, 2025, March 2, 2026, and June 24, 2026 to allow the petitioner to address issues with the petition. The petitioner filed a declaration the day before the last hearing, which was too late to be reviewed by Court Staff. The declaration did not resolve any of the outstanding issues.

The court on its own motion continues this hearing one final time to November 2, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The original will is not on file. (Probate Code § 8200.)
2. Petition, item 2.d: The petition seeks to waive bond based on the reasons given in Item 3.e, but no boxes are checked in Item 3.e.
3. Petition, item 3.g(1) and (2): Petitioner shall clarify if he is seeking appointment as executor or administrator.
4. Petition, item 3.h: Either (1) or (2) must be marked. Either (3) or (4) must be marked.
5. Petition, item 5.a: Either (1) or (2) must be marked. Either (5) or (6) must be marked. Either (7) or (8) must be marked.
6. Petition, item 6: The first applicable box must be marked.
7. Petition, item 7: The first applicable box must be marked.
8. Petition, item 8: Per the instructions on page three of the Petition for Item 8, the petitioner is required to list everyone named in the decedent's will.
9. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
10. Notice of Petition, item 3: This item must be completed.
11. Notice of Petition, item 10: This item must be completed.
12. There is no proof of publication on file. (Prob. Code § 8124.)
13. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.

LINE

7

**IN THE MATTER OF THE RAY AND MERCEDES ODOM LIVING TRUST
DATED OCTOBER 12, 1992
PR25-00746**

Verified Petition For (1) Removal of Successor Trustee For Abandonment; (2) Appointment and Confirmation of Successor Trustee; (3) Accounting; (4) Delivery of Trust Property; and (5) Bond Waiver or, In the Alternative, Provisional Bond

Objection and Response to Verified Petition for: (1) Removal of Successor Trustee for Abandonment (2) Appointment and Confirmation of Successor Trustee; (3) Delivery of Trust Property; (4) Bond Waiver or, in the Alternative, Provisional Bond

PREGRANT ORDER

This matter was continued from January 7, 2026, March 23, 2026, May 13, 2026, and June 25, 2026, to allow the petitioner to address issues with the petition and to allow the trustee to file an objection. The court has reviewed the objection filed July 2, 2026. Nothing has been filed by the petitioner to address the issues with her petition.

The court on its own motion continues this hearing to November 5, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The copy of the trust attached to the petition indicates that the trust is governed by Oklahoma law, and the petition states the current trustee resides in Oklahoma. It is unclear how the court has jurisdiction over the trustee or the administration of the trust given Probate Code sections 17002 through 17205. The petition and declaration state that, because the beneficiary lives in California, this gives this court jurisdiction over this proceeding which does not meet the requirements of Probate Code section 17005. The petitioner shall explain why the court should not sustain the objection and dismiss this petition.
2. There is no Proof of Service showing that the Supplemental Declaration was served on all interested persons. There is a proof of service for the initial petition and notice of the hearing, but not the supplemental declaration.

LINE

8

**IN THE MATTER ESSIE MAE WEEKS
PR26-00028**

First Amended Petition to Compel Production of Trust Documents and Accounting

PREGRANT ORDER

This matter was continued from June 25, 2026, to allow the petitioner to address issues with the amended petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing one final time to November 5, 2026, at 9:30 a.m. in Department 22. The petitioner is cautioned that if she does not resolve the following issues with her petition, the court may dismiss the petition:

1. There is no Proof of Service on file showing all those entitled to notice have received either the original petition or the amended petition per Probate Code section

17203. There is a Proof of Substituted Service but it is unclear whether the documents were served at a valid address for the respondents or the relationship of the person who received the documents to the respondents. The court notes that the trustees were represented by counsel in the original trust matter and there is no Proof of Service showing notice was given to counsel.

2. The Declaration filed March 9, 2026, states that because the petitioner believes that the scholarship fund was created using trust funds, the court should be able to review the trust documents and accounting. The declaration also appears to challenge the trust amendment which created the scholarship fund based on the trustor's possible health issues (page 2, lines 18-19). The petitioner should have brought her challenge or her questions about the trustor's capacity during the original litigation brought by Gloria Weeks in 2020 (case number FPR050261). The petitioner shall explain why she did not join in the litigation brought by Gloria Weeks.

LINE

9

**IN THE MATTER OF GERTIE MARIE WILLIAMS
PR26-00036**

Verified Petition Under Probate Code §850 For Accounting, Determination of Property Ownership, and Review of Fiduciary Conduct

PREGRANT ORDER

The court continued this matter from March 4, 2026, May 13, 2026, and June 25, 2026. Nothing has been filed to resolve the issues since the last hearing. The court notes that the petitioner retained new counsel on July 16, 2026.

The court on its own motion continues this hearing one final to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 4544, including the attorney-in-fact and the principal.
3. There is no Proof of Service showing all those entitled to notice have received it per Probate Code section 850.
4. The petitioner is not listed as a current trustee of the trust. The settlors/original trustees are both alive. The petitioner shall explain her standing to bring a petition

requesting an accounting for a revocable trust per Probate Code section 16069.

5. The initials on the Durable Power of Attorney appear to be LP, which would be Lazarus Pete and not Gertie Williams. The petitioner shall explain how the DPOA is valid with the initials of someone other than the principal.

6. The revocable trust was executed in July 2017, and the Schedule A included the real property. The petitioner shall explain why the real property should not be considered a trust asset.

LINE

10

IN RE THE ESTATE OF TABBIE LYNN SMITH, DECEASED
PR26-00100

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from April 9, 2026 and June 25, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed by the petitioner since February 2026.

The court dismisses the petition.

LINE

11

IN THE MATTER OF THE WILLIS THOMAS LIVING TRUST
PR26-00166

Petition to Return Trust Assets to Trust and Invalidate Trust Based On (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; § 21380)

Objections to the Petition to Return Trust Assets to Trust and Invalidate Trust Based on (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; Probate Code § 21380)

PREGRANT ORDER

This matter was continued from May 11, 2026 and July 2, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended Proof of Service filed July 28, 2026 which resolved the outstanding issues. At the last hearing, the court encouraged the parties to meet and confer.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of meet and confer.

LINE

13

**IN RE THE ESTATE OF MARLENE Y. TENZLER, DECEASED
PR26-00275**

Petition for Probate of Will and for Letters Testamentary and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from June 11, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the certified copy of the will and the order admitting the will filed June 16, 2026 and the declarations filed August 4, 2026 which resolved the issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The will of non-domiciliary Marlene Y. Tenzler dated January 11, 2024, previously admitted to probate on March 27, 2024 in accordance with the laws of the State of Washington, is ordered admitted to probate.

The court appoints Flora A. Tenzler-Fleischbein as executor with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

14

IN RE THE ESTATE OF HELEN GOULD, DECEASED
PR26-00309

Amended Petition for Letters of Administration with limited authority

PREGRANT ORDER

This matter was continued from June 24, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition filed August 19, 2026.

The court on its own motion continues this hearing to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. A separate copy of the notice of petition must be sent to the person or persons having legal custody of the minor, Julius Gould, with whom the minor resides. (Cal. Rules of Court, Rule 7.51(d).)
2. Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule § 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule § 7.53(a).) There is no proof of service in the file showing this occurred.

LINE

15

IN RE THE ESTATE OF EASTER MAE GREEN, DECEASED
PR26-00418

Petition for Probate of Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Petition, item 1: The Daily Recorder is not a newspaper of general circulation for Rio Vista. (See Prob. Code § 8120 et seq.) Publication must be done in a newspaper of general circulation.
2. Petition, item 5.a: Either (3) or (4) must be marked.
3. As a creditor, the petitioner's priority for appointment is below that of the Solano County Public Administrator. (Prob. Code § 8461, subds. (p) and (q).) There is no evidence that notice of the proceedings has been given to the Public Administrator. At least fifteen days prior to the continued hearing, the petitioner shall give notice of the hearing and shall provide a copy of the petition to the Solano County Public Administrator.
4. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
5. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

16

**IN RE THE ESTATE OF ERNIE SOLIS, DECEASED
PR26-00441**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Janette A. Brooks as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$500,000.00. Letters shall not issue until bond is posted with the clerk. The personal representative shall sua sponte apply for an increase in bond in the event the aggregate value of the estate's assets exceeds \$500,000.00.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

17

**IN RE THE ESTATE OF WILLIAM CHUBBS, JR., DECEASED
PR26-00444**

Petition for Probate of Letters of Administration and for Authorization to Administer
Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Christian Chubbs as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for January 25, 2027, at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for October 25, 2027, at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.
